VANGUARD TRUSTEE BERHAD

(Company No. 202501040565 (161974-K))
Address : Unit 12.01, Level 12, Menara MBMR, No.1, Jalan Syed Putra, 58000 Kuala Lumpur.

Ref No:

Private & Confidential

Letter of Engagement – Citadel Wealth Diversification Trust

This Trust Services Agreement (the "Agreement") is entered on _____between

Name of Client : _____(the "Client")

Passport / ID Number	
Registered Address	
Contact Number	+ ( )

and

Vanguard Trustee Berhad (the "Trustee")

Company Registration	202501040565 (1641974-K)
Registered Address	Unit 12.01, Level 12, Menara MBMR, No.1, Jalan Syed Putra, 58000 Kuala Lumpur, Malaysia.
Contact Number	+ ( )

This Letter of Engagement sets out the Services which our company shall provide in relation to the Trust and any Associate Company and save as otherwise set out in this Letter of Engagement will be subject to our Terms and Conditions (hereinafter referred as the "Terms"). Save as set out below, defined terms in this Letter of Engagement shall have the same meaning as those set out in the Terms. The Terms constitute a legally binding contract between the parties.

1. Definitions

1.1 The following terms shall have the following meanings:

"Associate Company"	means any company incorporated entity which is wholly owned the Trust.
"Services"	means such services as trustee which Vanguard Trustee Berhad has or will provide under Clause 2 below, including such services provided by Vanguard Trustee Berhad as deemed appropriate at the Trustee's discretion.
"Settlor"	means the person who establish the Trust and in the current case, you.
"Trust"	means the trust to be created by the Settlor the terms and conditions of which are set out in the deed establishing the Trust.
"Trustee"	means Vanguard Trustee Berhad acting in that capacity in relation to the Trust.
"Trust Asset"	means any cash, securities, shares, commodities, real estate, bonds or other immovable assets owned by the Trust and held, directly or indirectly, through an Associate Company.

1.2 Words importing the singular shall include plural and the masculine gender shall include the feminine and the neuter and vice versa in each case and words importing persons shall include bodies or persons whether corporate or unincorporated.

2. Services

2.1 At the request of the Settlor, the Trustee has agreed to provide and will provide the following services in relation to the Trust:

2.1.1 acting as trustee of the Trust including all relevant trustee services as stipulated under Trust Company Act 1949 of Malaysia;

2.1.2 preparation and maintenance of minutes of meetings of the Trust;

2.1.3 maintenance of the books of account of the Trust, arranging for the preparation of financial statement and the maintenance and operation of bank accounts;

2.1.4 dealing with the Trust's correspondence and day to day work;

2.1.5 dealing with, safekeeping and insuring (where applicable) the asset of the Trust including the administration of any Associate Company;

2.1.6 taking necessary action for compliance with tax and reporting obligation under Foreign Account Tax Compliant Act ("FATCA") and Common Reporting Standards ("CRS") and such other applicable legislation or regulation invoked from time to time and take such steps to register/report as necessary.

2.2 The Trustee may, but shall not be obliged to, provide additional services to those listed in clause 2.1 upon the request of the Settlor, and the Trustee may provide such additional services, at agreed fee, where applicable.

2.3 In relation to any Associate Company, the Settlor acknowledges, confirms and agrees that the Trustee shall carry out administration services in respect of any such Associate Company (including for the avoidance of doubt any company incorporated by the Trustee in its capacity as trustee of the Trust) in accordance with the (i) Terms of Business and (ii) letter of engagement of the Trustee relevant to the administration of companies.

3. Fees and Disbursements

3.1 The fees chargeable by the Trustee shall be based on the services rendered by the Trustee and the fees stipulated under APPENDIX 1. Additional service required from time to time arise during performance of the Trust will be charged separately.

3.2 The Trustee shall be entitled to reimbursement of all expenses, duties, taxes, or charges incurred by the Trustee or its Employees, Appointees, or Agents incidental to performance of the Services.

3.3 The Trustee reserves the rights to withhold the Services, should the fees not be fully paid within 15 days on presentation of an invoice.

3.4 Invoices will be raised in accordance with the Terms under APPENDIX 1 or when circumstances demand. Invoices will be sent by email to the Settlor unless otherwise agreed.

4. Client Due diligence and anti-money laundering/financing of terrorism

The Settlor agrees to abide by and comply with the Trustee in its performance of its legal and regulatory obligations designed to combat money-laundering and the financing of terrorism in respect of the Services.

5. Settlor's Obligations

5.1 The Settlor shall be obliged to disclose to the Trustee of any, and all information concerning any Trust Asset or its business that the Trustee may consider necessary or desirable from time to time.

5.2 The Settlor confirms, undertakes and covenants:

5.2.1 that any asset introduced or caused to be introduced to the Trust directly or indirectly through any Associate Company or any Trust Asset have been lawfully introduced and is not derived from or otherwise connected with any illegal activity;

5.2.2 that any Associate Company will not be engaged or involved directly or indirectly in any unlawful activity or be used for any unlawful purpose and the Settlor will keep the Trustee adequately informed as to all business to be transacted in the name of or for the account of the Associate Company and/or the Trust and that the Settlor will use her best endeavours to ensure that the Associate Company is run in a proper and business-like manner and complies with all applicable laws and regulations;

5.2.3 that the Settlor has taken appropriate tax and other advice with regard to the establishment, conduct and use of the Trust;

5.2.4 that the Settlor will provide the Trustee with all necessary information to carry out its duties hereunder and no such information or advice given to the Trustee will require or involve any unlawful act or contain any falsehood and that all information given will be accurate;

5.2.5 that the Settlor will not use any Trust Asset or any Associate Company in any manner contrary to any applicable code of dealing in securities; and

5.2.6 that the Settlor is not acting in a fiduciary capacity for any other person or entity.

6. Demands made against the Trust

6.1 In the event that, any demand is made against the Trust for payment of any sum due by it or the Trustee requires any advice from the Settlor and the Trustee has been unable to obtain such advice, then subject to the provisions of the Trust and any relevant law, the Trustee will act as in its sole discretion it deems fit and in accordance with its duty as Trustee. In particular, without prejudice to the generality of the foregoing, it may proceed in any one or more of the following ways:

6.1.1 decline to make any payment demanded;

6.1.2 decide to take no further action on the particular matter;

6.1.3 utilise any assets of the Trust in or towards the satisfaction of any such demand; or

6.1.4 distribute or otherwise transfer the entire Trust Property in the Trust to the Settlor and wind up the Trust.

6.2 No liability shall attach to the Trustee in respect of or arising out of any action or inaction which is in accordance with the provision of these Terms.

7. Requests by Settlor

7.1 The Trustee may in its absolute discretion act on requests or advice from the Settlor or any person it believes to be duly authorised by the Settlor in all matters concerning the Trust and its affairs. Such requests or advice may be communicated orally or in writing or by electronic means or otherwise and with or without authentication.

7.2 The Trustee shall not incur any liability for any failure on its part to comply wholly or partly with any request or advice and shall not be responsible for any nonreceipt thereof or any errors or ambiguity therein or any lack of authority on the part of the person making or giving the same.

8. Management of Business Asset under Trust

Where a business or any interest therein is contained in the assets of the Trust, the Trustee shall not be bound or required to interfere in its management or conduct.

9. Cessation of the Trustee's Obligations

9.1 Subject to the provisions of the Trust and any relevant law, all and any obligations to provide the Services shall cease and the Trustee may resign forthwith:

9.1.1 if the Settlor fails to observe any of her obligations pursuant to these Terms; or

9.1.2 if any of the covenants, warranties or undertakings given by the Settlor is found to be untrue or misleading in any way; or

9.1.3 if the Trustee wishes to resign as Trustee and to cease providing the Services for whatever reason, the Settlor shall forthwith provide the names of alternative trustees for the Trust to enable the Trustee to resign forthwith.

9.2 If the Settlor does not provide such alternative trustees, then the Trustee may exercise any power of appointment contained in the Trust in favour of another professional trustee or in favour of one or more of the beneficiaries so as to terminate the Trust

and distributing the Trust Property to the beneficiaries so entitled. The Trustee and / or its Employees shall not be liable in any way for any losses, costs, damages or expenses to the Trust or any Associate Company, Settlor or any beneficiary arising as a result of action hereunder and the Settlor hereby agrees to indemnify the Trustee and its Employees and to keep them indemnified against all demands, claims, liabilities, costs and expenses whatsoever that the Trustee, its Employees may incur hereunder in connection herewith.

9.3 Subject to the provisions of the Trust or any applicable law, on the cessation of the whole or any part of its duties, the Trustee shall be entitled to make such retentions and receive such indemnities as it may require in respect of any actual or contingent liabilities.

10. Termination

The Settlor or the Trustee may terminate this Letter of Engagement by giving 30-day written notice to the other party at their respective address as stated in this Letter of Engagement, or such other address as the other may have from time to time notified in writing.

11. Jurisdiction

This Letter of Engagement shall be governed by and construed in accordance with the laws of Malaysia and the parties hereto submit to the non-exclusive jurisdiction of the courts of Malaysia.

Your faithfully
For and on behalf of
Vanguard Trustee Berhad

……
Director

I hereby agree and accept the above terms and conditions of the Letter of Engagement.

Signature : …….
Name :
Date of Signing:

APPENDIX 1

FEES AND DISBURSEMENT

(to be taken read and constructed as an essential part of this Letter of Engagement)

	Fees	Fee Charge
1.	**Trust Administration Fee, per annum** (*payable annually in advance*) Trustee fee of 1% of the initial injection of funds and assets. (Calculated based on the value of the initial trust property.) - Set up to trust structure and account - Advisory on the trust arrangement in term of process and time - Review and understand the background and business information of Settlor for the trust set up purpose - Review and understand the background and fund source of the Settlor - Administration service for the initial fund arrangement to the Trust account - Administration service for the initial instruction from Settlor for the fund arrangement from Trust account - Inclusive the service stipulated under Clause 2.1 of this Letter of Engagement as the following: • acting as Trustee • preparation and maintenance of minutes of meetings of the trustees; • maintenance of the books of account of the Trust, arranging for the preparation of financial statements and the maintenance and operation of bank accounts; • asset allocation of the Trust (with Settlor's instruction and approval • dealing with, safekeeping and insuring (where applicable) the Trust Assets including the administration of any Associate Company	1.00%

(Any legal fee, other than the legal cost noted above, or bank charges which may arise from each transaction/instruction whenever required/instructed by the Settlor will be reimbursed upon incurred)

Agreed and Confirmed by,

……
Name:
Date of Signing: